

The Department of Agriculture, Fisheries and Forestry administers the Biosecurity Act 2015, Export Control Act 2020, Imported Food Control Act 1992 and various other Acts in order to protect Australia's animal, plant and human health status and to maintain market access for Australian food and other agricultural exports.

If you import or export goods to or from Australia or are associated with the movements of vessels or aircraft to Australia, you should be aware of your responsibilities under Australian law.

The Biosecurity Act 2015 (Biosecurity Act) commenced on 16 June 2016. It is co-administered by the Minister responsible for Agriculture and the Minister responsible for Health.

A strong biosecurity system helps protect our way of life from the threat of exotic pests and diseases to our unique environment, the economy, our health and our agricultural industries.

The risks posed by exotic pests and diseases are increasing due to growing international passenger and trade volumes, population expansion, the emergence of new pests and diseases and regional development.

The Biosecurity Act 2015 strengthens and modernises our biosecurity system, making sure it is up to the challenges of the future. All primary and subordinate biosecurity legislation can be found on the [Federal Register of Legislation](#).

Read more about [how the Act is administered and its impact on specific industries and trade](#).

Primary legislation and regulations

The primary legislation that provides the legal powers for all of Australia's biosecurity activities is the [Biosecurity Act 2015](#).

There are two regulations made under the Act:

- The [Biosecurity Regulations 2016](#) (administered by the Department of Agriculture); and
- The [Biosecurity \(Human Health\) Regulations 2016](#) (administered by the Department of Health and Aged Care).

Biosecurity Goods Determinations

There are five Goods Determinations that provide additional detail on imports under the Biosecurity Act 2015.

Lists referenced in the Biosecurity Goods Determinations

These lists provide extra clarification on the Biosecurity Goods Determinations. They should be read together for a full understanding of legislative requirements.

Other lists related to import conditions

Instruments related to ballast water

Other determinations

Australia's new legal framework for agricultural exports commenced on Sunday 28 March 2021 at 3 am Australian Eastern Daylight Time (AEDT).

The Australian Government introduced the new export legislation as part of a wider initiative to strengthen Australia's agricultural exports and market access. This initiative will:

- make the laws more relevant
- responsive and efficient
- provide the same level of regulatory oversight
- remove duplication
- ensure consistency across the commodities where possible.

This will allow for a streamlined approach to regulating different prescribed commodities and will ensure the framework is more accessible for exporters.

The new export legislation includes two components.

- The Export Control Act 2020 (the Act) sets out the overarching legal framework for the regulation of exported goods, including food and agricultural products, from Australian territory. It enables the Secretary of the Department of Agriculture, Fisheries and Forestry to make rules that detail the requirements and establish conditions relating to the export of certain goods.
- [Export Control Act 2020](#)
The Export Control (Consequential Amendments and Transitional Provisions) Act 2020 provides transitional provisions and makes consequential amendments to manage the transition to the new agricultural export legislation.
- [Export Control \(Consequential Amendments and Transitional Provisions\) Act 2020](#)
- The Export Control Rules 2021 (the Rules) are legislative instruments made by the Secretary under section 432 of the Act. The Rules set out the operational requirements that must be adhered to for the export of specific goods from Australian territory, or from a part of Australian territory (e.g. meat).

To read more about the new export legislation, visit: [Improving agricultural export legislation](#).

Source: <https://www.agriculture.gov.au/biosecurity-trade/policy/legislation>